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File No.: EXP202318949

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 15/11/2023, a complaint was received by the Spanish Agency for Data Protection (AEPD) filed by Ms. A.A.A. (hereinafter, the complainant) with the Municipal Office of Consumer Information of the City Council of ***LOCALIDAD on 09/11/2023. The complaint was forwarded by the aforementioned city council in compliance with Law 40/2015, of October 1, on the Legal Regime of the Public Sector. The complaint is directed against TOTALENERGIES CLIENTES, S.A. with NIF A95000295 (hereinafter, the respondent).

The reasons for the complaint are as follows: the complainant states that she became aware of the impersonation of her identity in the contracting by the respondent. She claims that her personal details were used in the contract, while the rest of the personal data collected in the contract, such as the bank account, supply address, phone number, and email, are false.

Along with the complaint, she provides:

- Postal communication dated October 24, 2023, sent by the respondent informing her that two copies of her contract with the latest requested modifications are attached.

The communication is addressed to "A.A.A., ***DIRECCIÓN.1"

The communication indicates that she must verify that all data is correct and return a signed copy.

Attached are:

- o Request form for withdrawal.

- o Energy and/or services contract with reference (...) in the name of the complainant, which includes, among others, the following data:

"NIF: ***NIF.1

Phone: ***TELÉFONO.1

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Email: ***EMAIL.1

Supply address: ***DIRECCIÓN.2"

- o Communication informing of the submission of the SEPA direct debit authorization order, which states "this is the document that authorizes us to make charges to the new bank account provided."

- o SEPA direct debit authorization form in the name of the complainant. The preconfigured account number is indicated as (...).

- Report of the police complaint filed on October 12, 2023, in which she reports the facts and claims to have no relationship with the supply address listed in the contract.

- Certificate of registration identifying the complainant's address as "***DIRECCIÓN.1"

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGGD), on 03/01/2024, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 03/01/2024 as noted in the acknowledgment of receipt in the file.

In response to the forwarding, on 05/02/2024, the respondent made the following statements:

- That the management of the contracting of energy, gas, and other services by final consumer clients is carried out through different contracting modalities. The reported incident originates from a contract

made in the name of the complainant, in person.

- It asserts that, after conducting the necessary investigations, it has been confirmed that the initially received complaint was already resolved, having carried out all necessary actions to resolve the initial situation prior to the receipt of the current information request.
- It indicates that the complaint arises from the contracting for energy supply—and ancillary services—for a supply point that the complainant does not recognize as her own and that would have been made without her consent.
- Once the complainant became aware of the contracting of these services in her name, she contacted the respondent to request access to a copy of the energy supply contract signed with this entity, documentation that was sent by this entity.
- As a result of the facts and prior to filing the complaint with the AEPD, the complainant had filed a complaint with the Municipal Office of Consumer Information of the City Council of

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***LOCALIDAD.1 that was transferred to the responding party and was duly answered, in a timely manner.

- It states that once it became aware of these facts and that the claimant did not recognize the contract made, the responding party carried out all necessary procedures to verify the facts and resolve the issue raised by the claimant.
- To this end, all procedures were carried out for the disassociation of their personal information as well as to manage the cancellation of any ancillary service linked to the contracted supplies.
- Furthermore, the billing issued resulting from the period during which the energy supply contract was active with this entity was annulled, not generating any charges to the claimant.

Along with its submission, it provides:

- Communication sent to the claimant on February 2, 2024, following the transfer of the complaint from the AEPD, in which it outlines the actions it has taken regarding their case.
 - Communication sent to the claimant on November 28, 2023, in response to the complaint filed against the responding party by the claimant. In it, it states: “we have disassociated A.A.A. from the contract located at Calle ***DIRECCIÓN.2, Madrid, and annulled the issued billing. We regret the inconvenience caused. Currently, A.A.A. has no contractual link with this company and no outstanding debt.”
 - Copy of the complaint filed with the Municipal Office of Consumer Information of the
- ***LOCALIDAD.1 City Council by the claimant on November 9, 2023.
- Copy of the certification document of (...) related to the sending of confirmation text messages regarding the contract supposedly made by the claimant.

THIRD: On February 9, 2024, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On April 3, 2024, additional information was requested from the responding party, and on April 17, 2024, in response, it stated that:

1. The process for registering new accounts in person indicates that it is carried out through stands at fairs or shopping centers, as was the case with the claimant.

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To this end, in certain shopping centers, there are stands identified with the logos of the responding party, where personnel duly identified by corporate attire work and display accreditation as a collaborating company of the responding party. In the present case, the request for contracting was made through a stand located in the shopping center (...). They assert that the contracting process in this modality is as follows:

- If a consumer, in person at one of these stands, shows interest in the products or services offered by the responding party, their personal data is collected in order to input it into the systems, and their identity is verified by the physical presentation of their ID (or equivalent identification document). Additionally, all necessary data to formalize the contracting is requested from the potential client, including billing information and payment methods (bank account number), for the purpose of direct debit of the payment for the products or services to be contracted.
- Once all this information, necessary for the contracting, is collected and entered into the sales registration tool, the responding party sends two SMS messages to the mobile phone number provided by the potential client. First, an SMS is sent to finalize the contracting (which includes a link with a URL, from which the client can view all applicable contractual conditions for their contracting) and they are asked to confirm the contracting by sending a response SMS. Subsequently, a second SMS is sent to the same phone, requesting the submission of a copy of the documentation proving their identity.

A trusted third party certifies the sending and receipt of all these SMS messages.

- Finally, an external company collaborating with the responding party makes a verification call to the contact phone number of the potential client, while they remain physically at the stand, and confirms with them their willingness to contract and the applicable conditions.
- Upon completion of this contracting process, all information is registered in the internal systems of the responding party to be processed, with the aim of activating the contracted service, either by requesting the change of marketer to the distributor or, directly, with the activation of the contracted service.

Regarding the existence of technical reports or recommendations prepared by the data protection officer or by the security officer to prevent identity theft in the in-person contracting process of supplies, the representatives of the entity inform that the incident reported by the claimant relates to the management of the contracting of energy supplies by end consumer clients in the modality of in-person contracting, as well as in the management of billing for the supply of energy and gas. Such processing encompasses the collection and processing of identifying and contact data, as well as data related to payment methods and information about the supply point, all of which are necessary to provide the contracted services and manage the billing cycle.

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The incident mentioned in the complaint originates from a contract made in the name of the complaining party in person, at a stand attended by a collaborator of the responding party, located in a shopping center (...).

The responding party considers that the currently applicable measures in the modality of in-person contracting at stands in fairs or shopping centers, as previously described, are objectively adequate to prevent identity theft. In particular, the presentation of the ID card or identification document of the potential client or contracting applicant allows for the assumption of the legality of the operation and the truthfulness and accuracy of the provided data, which must match those provided for the contract. Furthermore, to avoid inaccuracies or possible errors in the contracting process, the entire contracting operation is subsequently verified by phone by an external company.

Regarding the subsequent actions taken, the responding party became aware of these facts and that the complaining party did not recognize the contract made, prior to receiving the Complaint sent by this Agency. The responding party carried out all necessary procedures to verify the facts and resolve the

incident highlighted by the Complainant. To this end, the responding party took the relevant steps to dissociate the personal information of the complaining party from the contract made in their name for the supply point whose contract they do not recognize —***ADDRESS.2—, as well as to restore the supplies to their previous marketer and manage the cancellation of the ancillary service linked to the contracted supplies.

Additionally, the responding party proceeded to cancel the invoicing issued resulting from the period during which the supply contract was active with this entity and linked to the data of the Complainant, verifying that they had not paid any amount during the validity period of this contract.

The responding party states that it could not have known that a contract was being made without the consent or knowledge of the complaining party, since in that contract the personal information of the complaining party was provided and the original ID was exhibited—a copy of this identification document was registered—as evidence of the identity verification carried out at the time of processing the contract. Therefore, for TALENERGIES CLIENTES, the contract appeared to be truthful and lawful, as the personal data of the Complainant was provided and their ID was submitted.

It asserts that the person who carried out the contracting process identified themselves as the complaining party and provided a copy of their national identity document at the time of signing the contract.

From the entity's perspective, the ID is not a document accessible to a third party unrelated to the complainant and is a document presumed to verify the identity of Spanish citizens and “is the only document with sufficient value by itself for the accreditation, for all purposes, of the identity and personal data of its holder (...) and is a personal and non-transferable document, so it is the holder's obligation to keep it valid and to preserve and safeguard it with due diligence.”

Moreover, in order to verify the intention to contract and formalize it, the responding party sent, by telematic means, the commercial offer and the supply contract for energy and ancillary services, which was electronically confirmed by responding to the text message sent by the responding party.

The responding party provides, along with its submission, evidence of the contract dated 13/06/2023, certified by (...), in its capacity as a trusted third party, and a printed copy of the ID of the complaining party.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

Analysis of the case

Article 6 of the GDPR, Lawfulness of processing, establishes in its paragraph 1:

“1. Processing shall be lawful only if it meets at least one of the following conditions:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

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b) the processing is necessary for the performance of a contract in which the data subject is a party or for the application at the request of the data subject of pre-contractual measures;

- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
 - d) the processing is necessary to protect vital interests of the data subject or of another natural person.
 - e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
 - f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.
- The provision in paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

In the present case, the fundamental issue lies in determining whether the respondent had any of the bases that legitimize the processing of personal data in accordance with Article 6.1 of the GDPR or whether it took the measures that due diligence requires in order to demonstrate that the person from whom it collected and obtained the data to carry out the contracting of the corresponding supply was its owner.

In relation to the contracting, the claimant has stated that it became aware of the impersonation of its identity in the contracting with the respondent, as its personal data was used, and it did not correspond to the rest of the personal data contained in the contract, such as the bank account, address, phone number, and email.

For its part, the respondent has informed that it carries out face-to-face contracting operations for the supply of electricity and gas through its collaborators, informing potential clients and end consumers in this modality. To this end, it processes all the necessary data to provide the contracted services and manage the billing cycle, including identification data, contact data, payment method information, supply point information, etc. It assures that, to avoid inaccuracies or errors in contracting, the contracting is subsequently verified by phone by an external company.

The claimed facts originate from the contracting carried out in the name of the claimant at a stand attended by a collaborator of the respondent, that is, in person, at a shopping center (...).

During the preliminary investigation proceedings carried out by the General Subdirectorate for Data Inspection, the respondent has provided information where the complainant's data is linked to an electricity supply contract.

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The request for contracting was made in person at the entity's stand located in the shopping center through its collaborators, as described in section Four of the Facts. As noted, this was done by providing the ID card of the claimant and sending a confirmation of acceptance of the contract to the phone number provided by the person who executed the contracting, along with the ID card of the claimant. In summary, a copy of the claimant's ID card was submitted as a document proving the identity of the contractor, which the responding party has provided in response to the information request made by the AEPD.

The responding party, after being informed by the claimant of the possibility of having been a victim of identity theft, immediately classified the operation as fraudulent, carrying out all necessary procedures to verify the facts and resolve the incident, also proceeding to dissociate the personal data of the claimant from the address of the supply point recorded in the contract. Furthermore, the billing issued corresponding to the consumption made during the time the contract in the name of the claimant was active was annulled.

In light of the documentation provided, there are no elements that allow for the assertion that a violation of data protection regulations has occurred by the responding party, as the presence of the

subjective element of the infringement is essential to impose liability within the framework of administrative sanctioning law.

It is necessary to point out that Administrative Sanctioning Law, due to its specificity, applies, with some nuances but without exceptions, the guiding principles of criminal law, resulting in the clear full validity of the principle of the presumption of innocence.

The Constitutional Court in its Judgment 76/1990, of April 26, regarding the right to the presumption of innocence and the principle of culpability establishes:

"There can be no doubt that the presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, whether criminal, administrative in general, or tax in particular, since the exercise of *ius puniendi* in its various manifestations is conditioned by the play of evidence and a contradictory procedure in which one's own positions can be defended. In this sense, the right to the presumption of innocence entails: that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must translate into an acquittal ruling."

The Judgment of the Constitutional Court of 20/02/1989 indicates that "Our doctrine and criminal jurisprudence have maintained that, although both can be considered as manifestations of a generic *favor rei*, there is a difference."

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substantial between the right to the presumption of innocence, which unfolds its effectiveness when there is an absolute lack of evidence or when the evidence presented does not meet the procedural guarantees and the jurisprudential principle in *dubio pro reo* that belongs to the moment of the evaluation or appreciation of evidence, and that must judge when, the indispensable evidentiary activity occurs, there is a rational doubt about the real concurrence of the objective and subjective elements that integrate the criminal type in question."

In short, those principles prevent imputing an administrative infringement when no evidence has been obtained and accredited that substantiates the facts that motivate this accusation or the involvement of the alleged infringer in them, applying the principle "*in dubio pro reo*" in case of doubt regarding a specific and determining fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

Therefore, it must be concluded that after analyzing the claimed facts and the actions carried out by this Agency, sufficient elements of judgment have not been accredited that allow attributing to the claimed party the violation of the regulations on data protection, in addition to the fact that said entity acted with reasonable diligence in verifying the identity of the claiming party.

V

Conclusion

Therefore, based on what is indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, since it has not been possible to attribute responsibility for the processing as indicated, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to TOTALENERGIES CLIENTES, S.A. with NIF A95000295 and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Olga Pérez Sanjuán

Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency of the AEPD

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